

23AHCV02008 23AHCV02008

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-08-31

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[TENTATIVE] ORDER DENYING SPECIALLY APPEARING DEFENDANT ZEMING QI TO SET ASIDE DEFAULT AND TO QUASH SERVICE OF SUMMONS AND COMPLAINT

I. INTRODUCTION

This action arises from the alleged unauthorized sale of two commercial warehouse properties belonging to Plaintiff Lightking America Technology (L.A.) Ltd. ("Lightking") by Defendant Zeming Qi ("Qi") to Defendants Ovoda, LLC ("Ovoda") and XHK Investment 3, LLC ("XHK"). Plaintiffs allege that on March 1, 2022, Qi transferred Lightking's Chino warehouse to Ovoda by executing a grant deed on Lightking's behalf as its purported CEO/CFO, despite allegedly holding no such position and having no authority from Lightking or Plaintiff Yuan Sun ("Sun"), Lightking's sole shareholder, to make the transfer. Plaintiffs allege that Qi similarly transferred Lightking's Rancho Cucamonga warehouse to XHK on March 15, 2022, without authorization.

On May 14, 2026, Plaintiffs filed the operative Second Amended Complaint ("SAC"), asserting causes of action for: (1) quiet title; (2) fraud; (3) breach of fiduciary duty; (4) knowingly buying, selling, and/or receiving stolen property under Penal Code section 496; (5) unjust enrichment; (6) money had and received; (7) negligence; and (8) violation of Government Code section 12261. The SAC names both Lightking and Sun as Plaintiffs.

On July 31, 2026, specially appearing Defendant Qi filed the instant motion to set aside the default and quash service of the summons and complaint. Plaintiffs filed an opposition on August 19, 2026, and Qi filed a reply on August 25, 2026.

II. LEGAL STANDARD

Code of Civil Procedure section 473, subdivision (d) provides that:

The court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order. (Code Civ. Proc., § 473(d).)

Courts may set aside a default or default judgment due to lack of actual notice. Code of Civil Procedure § 473.5 states:

"(a) When service of a summons has not resulted in actual notice to a party in time to defend the action and a default or default judgment has been entered against him or her in the action, he or she may serve and file a notice of motion to set

aside the default or default judgment and for leave to defend the action. The notice of motion shall be served and filed within a reasonable time, but in no event exceeding the earlier of: (i) two years after entry of a default judgment against him or her; or (ii) 180 days after service on him or her of a written notice that the default or default judgment has been entered.

III. ANALYSIS

Specially appearing Defendant Qi moves for an order setting aside the default and quashing service of the summons and complaint pursuant to Code of Civil Procedure sections 473(d) and 473.5 on the ground that he was not properly served with the summons and complaint.

Qi first argues that the purported substitute service at 3411 Ashley Court in Chino Hills on July 1, 2024, was invalid because, at the time of service, that address was not his “dwelling house, usual place of abode, usual place of business, or usual mailing address” within the meaning of Code of Civil Procedure section 415.20(b). Qi declares that he was residing in Mexico City at the time, had not been to the Ashley Court property since 2022, and that his former wife did not receive mail for him there or have authority to accept service on his behalf. (Qi Decl., ¶¶ 4-5.)

Qi further argues that because he was a foreign national residing outside the United States at the time of the purported service, service was required to comply with the Hague Service Convention. Thus, Qi contends the July 1, 2024, substitute service was ineffective, the Court never acquired personal jurisdiction over him, and the resulting default is void under section 473(d). (Motion, pp. 6-7.)

In opposition, Plaintiffs argue that the proof of service is facially valid and creates a rebuttable presumption that service was properly effected. Plaintiffs contend Qi’s declaration is uncorroborated and insufficient to overcome that presumption. Plaintiffs further argue that the motion was not brought within a reasonable time as required by Code of Civil Procedure section 473.5. (Opposition, p. 2.)

[C]ompliance with the statutory procedures for service of process is essential to establish personal jurisdiction. [Citation.] Thus, a default judgment entered against a defendant who was not served with a summons in the manner prescribed by statute is void. [Citation.] “(Dill v. Berquist Construction Co. (1994) 24 Cal.App.4th 1426, 1444.) “Under section 473, subdivision (d), the court may set aside a default judgment which is valid on its face, but void, as a matter of law, due to improper service.” (Ellard v. Conway (2001) 94 Cal.App.4th 540, 544.)

A proof of service executed by a registered process server or sheriff’s department generally gives rise to a presumption of valid service, requiring the defendant to produce evidence to rebut it. (American Exp. Centurion Bank v. Zara (2011) 199 Cal.App.4th 383, 390.) Courts have repeatedly held that self-serving statements, without corroborating evidence, are insufficient to rebut the presumption of proper service. (American Express Centurion Bank v. Zara (2011) 199 Cal.App.4th 383, 390; Dill v. Berquist Construction Co. (1994) 24 Cal.App.4th 1426, 1444.)

Here, the proof of service reflects that substitute service was effected at the Ashley Court address on July 1, 2024, by leaving the summons and complaint with “Lian Zheng – Renter.” Qi acknowledges that he previously co-owned the Ashley Court property with his former wife. (Qi Decl., ¶ 5.) Qi nevertheless declares that he had not resided at the property since 2022, that his former wife had changed the locks and excluded him from the property, and that the property was not his dwelling house, usual place of abode, usual place of business, or usual mailing address at the time of service. (Qi Decl., ¶¶ 4-5.)

The Court does not find Qi’s showing persuasive. Although Qi declares that he was residing in Mexico City when service occurred, he provides no documentary evidence establishing his residence there as of July 1, 2024. The U.S. Customs entry and exit record submitted by Qi is dated December 11, 2023, more than six months before the challenged service, and contains no information concerning his whereabouts after that date. Further, nothing on the face of the document identifies Qi by name or otherwise establishes that the record pertains to him.

Considering the proof of service, Qi's admitted connection to the Ashley Court property, and the evidence presented in support of the motion, the Court does not credit Qi's assertion that the Ashley Court property was no longer a qualifying address for purposes of section 415.20(b) when service was effected. "[S]o long as the trier of fact does not act arbitrarily and has a rational ground for doing so, it may reject the testimony of a witness even though the witness is uncontradicted." (Beck Development Co. v. Southern Pacific Transportation Co. (1996) 44 Cal.App.4th 1160, 1204.)

The Court therefore finds Plaintiffs have established that substitute service was properly effected. Thus, Qi has not established that the default is void for lack of proper service under section 473(d).

The motion to set aside is DENIED.

IV. CONCLUSION AND ORDER

The Court DENIES Qi's motion to set aside default and to quash service of summons.

Qi is to give notice.

Dated: August 31, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT